

The First Statutes of the Footwear Design and Development Institute

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The First Statutes of the Footwear Design and Development Institute

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The First Statutes of the Footwear Design and Development Institute

Rule THE-FIRST-STATUTES-OF-THE-FOOTWEAR-DESIGN-AND-DEVELOPMENT-INSTITUTE of 2018

Published on 24 January 2018

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The First Statutes of the Footwear Design and Development Institute

Published vide Notification No. G.S.R. 63(E), dated 24.1.2018

G.S.R. 63(E). - In exercise of the powers conferred by sub-section (1) of section 27 read with section 26 of the Footwear Design and Development Institute Act, 2017 (20 of 2017), the Governing Council, with the prior approval of the Visitor, hereby frames the following first Statutes, namely:-

1.

Short title and commencement.

(1)

These Statutes may be called the First Statutes of the Footwear Design and Development Institute.

(2)

They shall come into force on the date of their Publication in the Official Gazette.

2.

Definitions.

(1)

In these First Statutes, unless the context otherwise requires,

(a)

"Act" means the Footwear Design and Development Institute Act, 2017 (20 of 2017);

(b)

"Department" means the branch of a School in a particular Institute Campus;

(c)

"Programme" means an academic course offered by the Institute under a particular School;

(d)

"sanctioned post" means academic or non-academic post duly sanctioned by the Governing Council;

(e)

"School" means an umbrella unit of the Institute dedicated to academic courses and research in a particular field of study or a particular branch of knowledge;

(f)

"section" means a section of the Act.

(2)

Words and expressions used herein and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

3.

Authorities of the Institute.

- Standing Committee of the Governing Council on Audit and Accounts as constituted under Statute 10 shall be one of the authorities of the Institute in addition to the authorities mentioned under section 12 of the Act.

4.

Governing Council and meeting thereof.

(1)

The Governing Council of the Institute may meet as often as may be considered necessary by the Chairperson for the transaction of business of the Institute but in no case less than two times during a calendar year.

(2)

Meetings of the Governing Council shall be convened by the Chairperson either on his own motion or at the request of the Managing Director or on a requisition signed by not less than five members of the Governing Council.

(3)

Not less than half of the Members shall form a quorum for a meeting of the Governing Council.

(4)

The Members of the Governing Council may also participate in the meeting through video conference or digital medium but no member shall use this method of participation for more than two consecutive meetings and such participation through video conference or digital medium shall be counted for the purpose of quorum:

Provided that if a meeting is adjourned for want of quorum, it shall be held within fifteen days, at the day, time and place as the Chairperson may determine.

(5)

All issues considered at the meetings of the Governing Council shall be decided by a majority of the votes of the members present and in case of a tie, the Chairperson shall have a casting vote.

(6)

The Chairperson shall preside over every meeting of the Governing Council:

Provided that in the absence of the Chairperson, the members of the Governing Council present shall elect a Member from amongst themselves to preside over the meeting.

(7)

A written notice of every meeting shall be sent by the Secretary to every Member at least fifteen days before the date of the meeting mentioning therein the place, date and time of the meeting :

Provided that the Chairperson may call a special meeting of the Governing Council at a shorter notice of less than fifteen

days to consider urgent issues.

(8)

The notice may be delivered either by hand or sent by registered post or e-mail or Fax, at the address of each member as recorded in the office of the Governing Council and if so sent, shall be deemed to have been duly delivered at the time at which notice shall be delivered in the ordinary course of post, or in case of email or fax, when the same is transmitted.

(9)

Agenda of a meeting shall be circulated at least seven days in advance by the Secretary or by any other person authorized by the Chairperson to all Members.

(10)

If a Member, other than exofficio members, of the Governing Council fails to attend three consecutive meetings without leave of absence from the Chairperson, he may be removed as per the procedure.

(11)

Notices of motions for inclusion of any item on the agenda must reach the Secretary at least ten days before the meeting:

Provided that the Chairperson may permit inclusion of any item for which due notice has not been received.

(12)

The minutes of the proceedings of a meeting of the Governing Council shall be drawn up by the Secretary or any other person authorised by the Governing Council in the absence of Secretary and shall be circulated to all members of the Governing Council and the same along with any amendment suggested shall be placed before the Governing Council in its next meeting for confirmation and after the minutes are confirmed and signed by the Chairperson, they shall be recorded in the minute book and the minute book shall be kept open for inspection by the Members of the Governing Council at all times during office hours.

5.

Powers of Governing Council.

- The Governing Council shall have the following powers in addition to the powers conferred upon it under section 8, namely:-

(a)

create and abolish, any post except that of Managing Director, Secretary and Executive Director;

(b)

re-designate or change the nomenclature of any post except that of Managing Director, Secretary and Executive Director.

6.

Manner of Filling up of casual vacancies in the Governing Council.

- All casual vacancies among the members (other than the ex officio members) of the Governing Council shall be filled, as soon as conveniently may be, by the person or body who nominated the member whose place has become vacant, and the person nominated to a casual vacancy shall be a member for the residual term for which the person whose place he fills would have been a member.

7.

Power of Chairperson in emergent cases.

- The Chairperson shall, in emergent cases, exercise the powers of the Governing Council except in the financial and recruitment related matters and take the approval of the Governing Council within one month and the intimation in such emergent matters shall be given to the Central Government immediately.

8.

Authentication of orders of the Governing Council.

- All orders and decisions of the Governing Council shall be authenticated by the signature of the Managing Director or the Secretary.

9.

Allowances of nominated members of the authorities of the Institute.

- The nominated members of the Governing Council, the Senate and the Standing Committee on Audit and Accounts, shall be entitled to allowances for attending their respective meetings as may be laid down by the Governing Council

from time to time.

10.

Standing Committee of the Governing Council on Audit and Accounts.

(1)

The Governing Council shall constitute a Standing Committee for the purpose of considering of all financial matters consisting of the following members, namely:-

(a)

the Managing Director, who shall be the Chairperson of the Standing Committee;

(b)

three Members of the Governing Council nominated by the Chairperson of the Governing Council;

(c)

the Director Finance referred to in clause (e) of sub-section (3) of section 4;

(d)

the Secretary, who shall be, Member-Secretary of the Standing Committee; and

(e)

the Head (Accounts and Finance) of the institute.

(2)

The Standing Committee shall meet at least two times in a year preferably before the meetings of the Governing Council.

(3)

Four members of the Standing Committee, along with at-least one member referred to in clause (b) of sub-statute (1) and Director Finance referred to in clause(e) of sub-section (3) of section 4, are present in the meeting shall form a quorum for a meeting of the Standing Committee.

(4)

The Managing Director, as Chairperson of the Standing Committee, shall preside over the meetings of the Standing Committees and in his absence such other member, as nominated by the Managing Director, shall preside over the meetings of the Standing Committee.

(5)

Meetings of the Standing Committee shall be convened by the Chairperson of the Standing Committee.

(6)

All issues considered at the meetings of the Standing Committee shall be decided by a majority of the votes of the members present and in case of a tie, the Chairperson of the Standing Committee shall have a casting vote.

(7)

A written notice of every meeting of the Standing Committee shall be sent by the Member- Secretary to every member at least fifteen days before the date of the meeting mentioning therein the place, date and time of the meeting:

Provided that in the absence of Member-Secretary, any other officer as may be authorised by the Chairperson of the Standing Committee in this regard may issue notices to the members of the Standing Committee;

Provided further that the Chairperson of the Standing Committee may call a special meeting of the Standing Committee at a shorter notice of less than fifteen days to consider urgent issues.

(8)

The notice may be delivered either by hand or sent by registered post or e-mail or Fax, at the address of each member as recorded in the office of the Standing Committee and if so sent, shall be deemed to have been duly delivered at the time at which notice shall be delivered in the ordinary course of post, or in case of email or fax, when the same is transmitted.

(9)

Agenda of a meeting shall be circulated at least seven days in advance by the Member-Secretary or in his absence any other person authorized by the Chairperson of the Standing Committee to all members.

(10)

Notices of motions for inclusion of any item on the agenda must reach the Member-Secretary at least ten days before the meeting:

Provided that the Chairperson of the Standing Committee may permit inclusion of any item for which due notice has not

been received.

(11)

The minutes of the proceedings of a meeting of the Standing Committee shall be drawn up by the Member-Secretary or any other person authorized by the Chairperson of the Standing Committee in the absence of Member-Secretary and shall be circulated to all members of the Standing Committee and the same along with any amendment suggested shall be placed before the Governing Council.

(12)

The Standing Committee, once constituted by the Governing Council, shall function till such time it is reconstituted by the Governing Council.

(13)

All policy matters pertaining to annual plan of expenditure and Audit, Accounts and Finance requiring consideration and approval of the Governing Council shall be first placed before the Standing Committee for its consideration, recommendations or approval.

(14)

All minutes of the proceedings of the Standing Committee or Resolutions of the Standing Committee shall be placed before the ensuing meeting of the Governing Council for its approval.

(15)

All orders and decisions of the Standing Committee shall be signed by the Chairperson of the Standing Committee and authenticated by the Member-Secretary or any other person authorized by the Chairperson of the Standing Committee in the absence of Member-Secretary.

11.

Powers of the Managing Director.

- The Managing Director may enter into Memorandum of Understanding or Agreements to cooperate with educational or other institutions in any part of the world having objects wholly or partly similar to those of the Institute by exchange of faculty members, senior functionaries, scholars, and students, in such manner as may be conducive to their common objectives and place it before the Governing Council in the next meeting.

12.

Senate.

(1)

In addition to the persons referred to in section 13, the Senate shall include the following members of the staff, namely :-

(a)

Head (Academics) of the Institute

(b)

Heads of Schools of the Institute

(c)

Such other persons from staff as may be nominated by the Managing Director

(2)

The term of office of the members of the Senate (other than ex-officio members), shall be of two years from the date of their nomination and any vacancy in the Senate (other than ex-officio members) shall be filled by nomination within a period of thirty days from the date of arising of vacancy.

(3)

The Senate shall meet as often as necessary, but not less than four times in each academic year, at such place and time as may be determined by the Chairperson of the Senate.

(4)

The Senate shall observe such rules and procedure in regard to the transaction of business at its meetings as may be determined by the Governing Council.

(5)

The meeting of the Senate shall be presided over by the Managing Director and in his absence, such other Member as may be nominated by the Managing Director in this regard.

(6)

One half of the total number of existing members of the Senate shall form a quorum for a meeting of the Senate.

(7)

All issues considered at the meetings of the Senate shall be decided by a majority of the votes of the members present and in case of a tie, the Managing Director shall have a casting vote.

(8)

A written notice of every meeting shall be sent by the Secretary or any other person authorised by the Chairperson of Senate in absence of Secretary to every member at least fifteen days before the date of the meeting mentioning therein the place, date and time of the meeting :

Provided that the Managing Director may call a special meeting of the Senate at short notice of even less than fifteen days to consider urgent issues.

(9)

If, in the opinion of the Chairperson of the Senate, any emergency has arisen which requires immediate action, he may take such action as he deems necessary and shall take approval of the same in the next meeting of the Senate.

(10)

The notice may be delivered either by hand or sent by registered post or e-mail or Fax, at the address of each member as recorded in the office of the Senate and if so sent, shall be deemed to have been duly delivered at the time at which notice shall be delivered in the ordinary course of post, or in case of email or fax, when the same is transmitted.

(11)

Agenda of a meeting shall be circulated atleast seven days in advance by the Secretary or any other person authorized by the Chairperson of Senate to all members.

(12)

If a member, other than ex-officio members, of the Senate fails to attend three consecutive meetings without leave of absence from the Chairperson of Senate, he shall cease to be a member of the Senate.

(13)

Notices of motions for inclusion of any item on the agenda must reach the Secretary at least ten days before the meeting :

Provided that the Chairperson of Senate may permit inclusion of any item for which due notice has not been received.

(14)

The ruling of the Chairperson of Senate with regard to all questions of procedure shall be final.

(15)

The minutes of the proceedings of a meeting of the Senate shall be drawn up by the Secretary or any other person authorised by the Chairperson of Senate and shall be circulated to all members of the Senate and the same along with any modification suggested shall be placed before the Senate in its next meeting for confirmation and after the minutes are confirmed and signed by the Chairperson of Senate, they shall be recorded in the minute book and the minute book shall be kept open for inspection of the members of the Senate at all times during office hours:

Provided that such minutes or portions of the minutes shall not be circulated if the Senate considers such circulation prejudicial to the interests of the Institute or confidential in the nature like appointment of examiners, paper setters, printing of examination papers or degree certificates etc.

(16)

The powers and functions of the Senate shall include -

(a)

framing and revising curriculum and syllabus for the courses of studies for various Schools or Departments or programmes;

(b)

making recommendations to the Governing Council with regard to the creation, restructuring or abolition of Schools or programmes;

(c)

overseeing the arrangements for the conduct of examinations, appointment of examiners, moderators, tabulators and other matters relating to the examinations;

(d)

declaring the results of final semester examinations or appointing Committees or Officers to do so;

(e)

making recommendations to the Governing Council regarding conferment or grant of honorary degrees and other academic distinctions or titles;

(f)

appointing Committees or working Groups from amongst the members of the Senate, other faculty members and experts from outside to advise on specific and important academic matters;

(g)

promoting research and development in class rooms and field as also encouraging opportunities for bringing in market realities to the class rooms through consultancy, outreach and Industry Programme projects;

(h)

planning and reviewing electives and other extracurricular programmes of students and making appropriate recommendations to the Governing Council;

(i)

over viewing the functioning of labs (excluding ITC Lab), studios, class rooms, workshops, hostels, student welfare, co-curricular activities, grievance mechanisms, and such other matters related to academics;

(j)

awarding stipends, scholarships, medals, prizes and other similar recognitions with such conditions as may be deemed necessary;

(k)

inviting two student representatives by rotation to the Senate meeting during discussion of matters relating to student welfare, not involving any policy or disciplinary matters; and

(l)

such other academic matters as may be referred to it by the Governing Council.

13.

Conferment of honorary degrees.

- The Institute may confer honorary degrees to exceptional and outstanding persons for their illustrious contribution in their respective fields

Provided that all proposals for the conferment of honorary degrees shall be made by the Senate, recommended by the Governing Council and approved by the Visitor.

14.

Schools.

(1)

The Institute may offer academic programmes under the following Schools, namely: -

(a)

School of Footwear;

(b)

School of Leather Goods and Accessories;

(c)

School of Fashion;

(d)

School of Retail and Fashion Merchandise;

(e)

any other school as may be approved by the Governing Council.

(2)

The above Schools shall have requisite departments, centres of research, workshops, laboratories and studios, as approved by the Governing Council from time to time.

15.

Nomenclature of education and training programmes.

- The certificate, diploma, graduate, postgraduate, research or other programmes and its nomenclatures offered by each School at the Institute shall be as approved by the Governing Council on the recommendations of the Senate.

16.

Institution of fellowship, scholarships, medals, prizes etc.

- The Senate may review and recommend, subject to the approval by the Governing Council, thresholds for institution of fellowships, scholarships, medal and prizes and the terms and conditions governing such awards:

Provided that any fellowship, scholarship, medal, prize, which has been instituted prior to the coming into force of this Statute shall continue to be awarded subject to the terms and conditions as has been fixed prior to coming into force of this Statute.

17.

Hostels and Halls of residence.

(1)

The Institute may establish and maintain halls of residence or hostels at its campuses or outside for its students, research scholars and research fellows enrolled in its programmes in such manner as may be specified.

(2)

Every resident in the hostels and halls shall conform to rules laid down for the purpose.

(3)

For each Hall and Hostel, there shall be a Warden and such number of Associate Wardens and other staff as may be determined by the Managing Director from time to time.

(4)

The offices of Warden shall be held by the members of the faculty of the institute campus. Whereas office of the Associate Warden may be from faculty / other staff of the institute campus.

(5)

Wardens and Associate Wardens shall be paid such allowances and such facilities as may be approved by the Governing Council from time to time.

(6)

The conditions of residence of students, levying of fees for residence and of other charges as also the management of Halls of Residence and Hostel shall be in accordance with the rules approved by the Governing Council.

18.

Secretary.

(1)

The Secretary of the Institute appointed under section 17 shall act as the Secretary of the Governing Council, the Senate, and such committees as may be assigned by the Governing Council or Managing Director.

(2)

He shall also Act as member Secretary of the Standing Committee on Audit and Accounts

19.

Executive Directors of Institute Campuses.

- The Executive Director for each Institute campus appointed under section 18 shall be the principal academic and executive officer of the Institute campus.

(2)

The Executive Director of the Campus shall exercise control over all academic and administrative matters of the Campus under overall supervision of the Managing Director.

(3)

The Executive Director shall execute all policy and administrative directions of the Managing Director, in respect of his institute campus.

(4)

The Executive Director shall implement all decisions of the Senate and Governing Council in respect of the concerned Institute campus.

(5)

The Executive Director shall assist the Managing Director in achieving excellence in academic and administrative standards in respect of all educational programmes and other activities of the campus.

(6)

The Executive Director shall exercise such administrative and financial powers as may be delegated to him by the Managing Director from time to time.

(7)

The Executive Director shall perform such other functions and discharge such other responsibilities as may be assigned by the Managing Director from time to time.

20.

Classification of Staff.

(1)

The members of the staff of the Institute shall be classified as under:

(a)

Faculty members shall include Heads of the Departments of the Institute campuses of respective departments and such other academic posts as recommended by the Senate and approved by the Governing Council.

(b)

Academic Technical Staff shall include technical staff assisting the academic programme in respective Schools/Departments/Workshop/Studio etc. The posts or designations of such staff shall be such as may be recommended by the Senate and approved by the Governing Council.

(c)

Administrative and other Staff shall include Head (Academics), Heads of Schools, General Manager, Deputy General Manager, Superintending Engineer, Senior Manager, Executive Engineer, Manager, Principal Private Secretary, Project Engineer, Librarian, Deputy Manager, Senior Private Secretary, Site Engineer, Hostel Warden, Supervisor, Sr. Personal Assistant, Hindi Officer, Hindi Translator, Sr. Accountant, Sr. Assistant, Assistant, Personal Assistant, Accountant, Hindi Typist, Multi-Tasking Staff, Electrician, Senior Drivers, Drivers, Plumbers, Gardener or such other posts as approved by the Governing Council.

Provided that the posts specified above shall pertain to the following administrative departments which shall perform the work as assigned by the Managing Director in respect of the Institute and Institute Campuses, namely :-

(i)

Human Resource Department,

(ii)

Accounts and Finance Department,

(iii)

Admissions Department,

(iv)

Training and Examination Department,

(v)

Placement Department,

(vi)

International Testing Centre,

(vii)

International and Domestic Consultancy,

(viii)

Estate Department,

(ix)

Projects Department,

(x)

Resource Centre,

(xi)

Information Technology Department,

(xii)

Library,

(xiii)

Such other administrative department as may be created by the Managing Director. The Managing Director shall exercise full power with respect to creation, abolition, redesignation, merger or demerger of the administrative departments.

(d)

International Testing Centre Staff shall include technical or administrative staff engaged in the functions of the International Testing Centre and the posts or designations of such staff shall be such as may be approved by the Governing Council.

(2)

The Institute shall have the following categories of employees, namely: -

(a)

Regular employees against available posts on applicable pay scales and allowances; or

(b)

Contractual employees on applicable pay scales and allowances or on Consolidated Pay; or

(c)

Fixed Tenure employees on consolidated pay ; or

(d)

Employees on Deputation; or

(e)

Employees on Ad-hoc basis.

21.

Procedure for appointment.

- All appointment to the posts of the Institute, except that of the Managing Director, Secretary and Executive Director shall be made in accordance with the following provisions, namely: -

(1)

Appointments shall be made through Direct Recruitment, Promotion or Deputation;

(2)

Recruitment rules shall be framed for each type of post in the following manner, namely: -

(a)

for the academic staff in the post of Assistant Professor or above or non-academic staff in any cadre, the maximum of the pay scale for which is the same or higher than that of Assistant Professor, the recruitment rules shall be approved by the Governing Council;

(b)

for any other case, the recruitment rules shall be approved by the Managing Director.

(3)

An appointing authority shall constitute a Selection Committee as may be specified in the recruitment rules as may be made in this regard;

(4)

No act or proceeding of any Selection Committee shall be called in question on the ground of absence of any member or members of the Selection Committee.

(5)

All posts to be filled up by Direct Recruitment and Deputation in the Institute shall be filled by giving wide publicity through website, print media and such other means as may be deemed appropriate to ensure wide publicity.

(6)

While making appointments, the Institute shall make necessary provisions for the reservation of posts as per the extant policy and the rules made thereunder and directives given by the Government of India from time to time.

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